

Ethics in research on human subjects: *best practices*

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Anthropology 215

Office hours: Wednesdays 9-10.30AM



The key to it all...

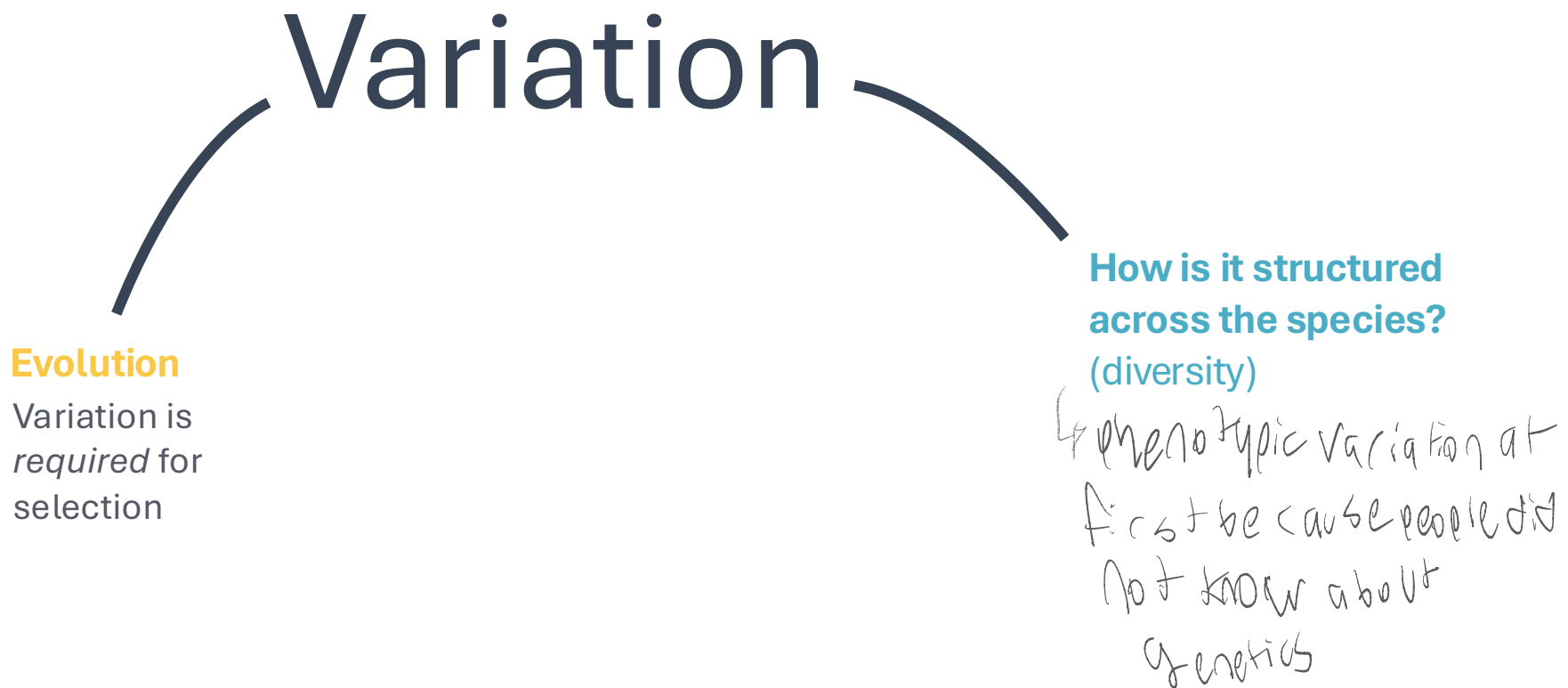
Evolution



Variation

The key to it all...

Variation



Evolution

Variation is
required for
selection

How is it structured
across the species?
(diversity)

↳ phenotypic variation at
first because people did
not know about
genetics

The key to it all...

Variation

Evolution

Variation is
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Existence of biological race:

- ☐ Diversity within groups lower than diversity between groups - *breaks in biology*
- ☐ Clear breaks in geno- and phenotype
- ☐ Suite of characters that define race (are invariant!) and inherited together - *concordance*

How is it structured across the species? (diversity)

The roots of this field lie in attempts to answer this question *nonscientifically*: that is, there was a preconceived conclusion ('the pattern of diversity is concordant with the existence of 'race'') into which data was forced

*In order
for race to
be fully
defined
Need...*

The key to it all...

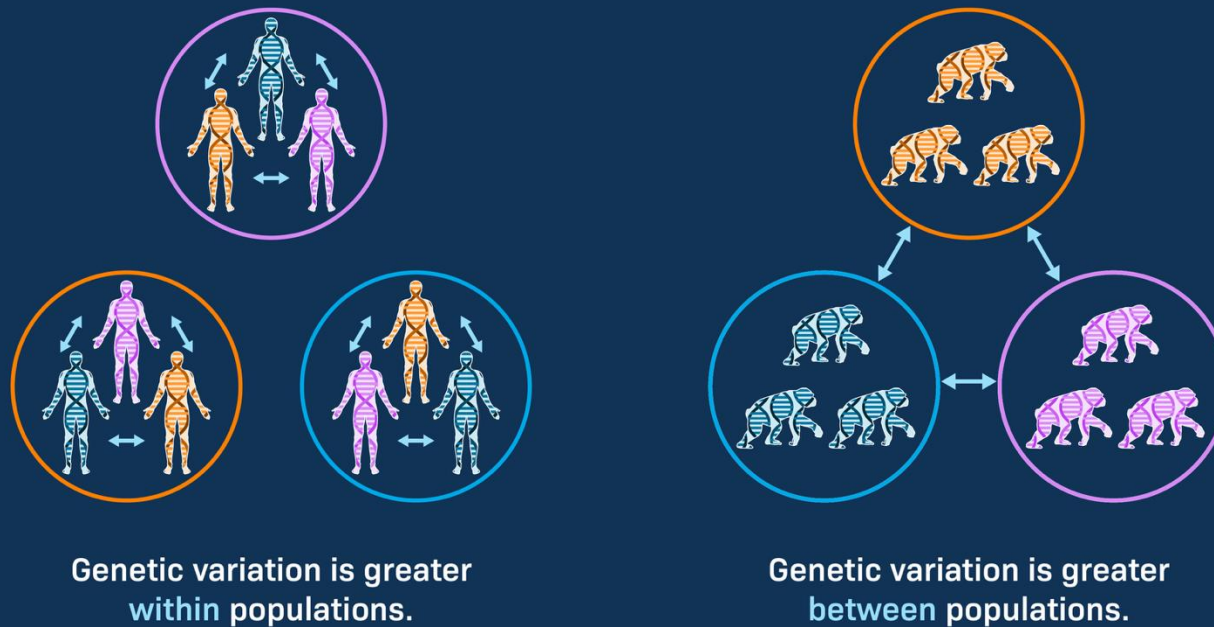
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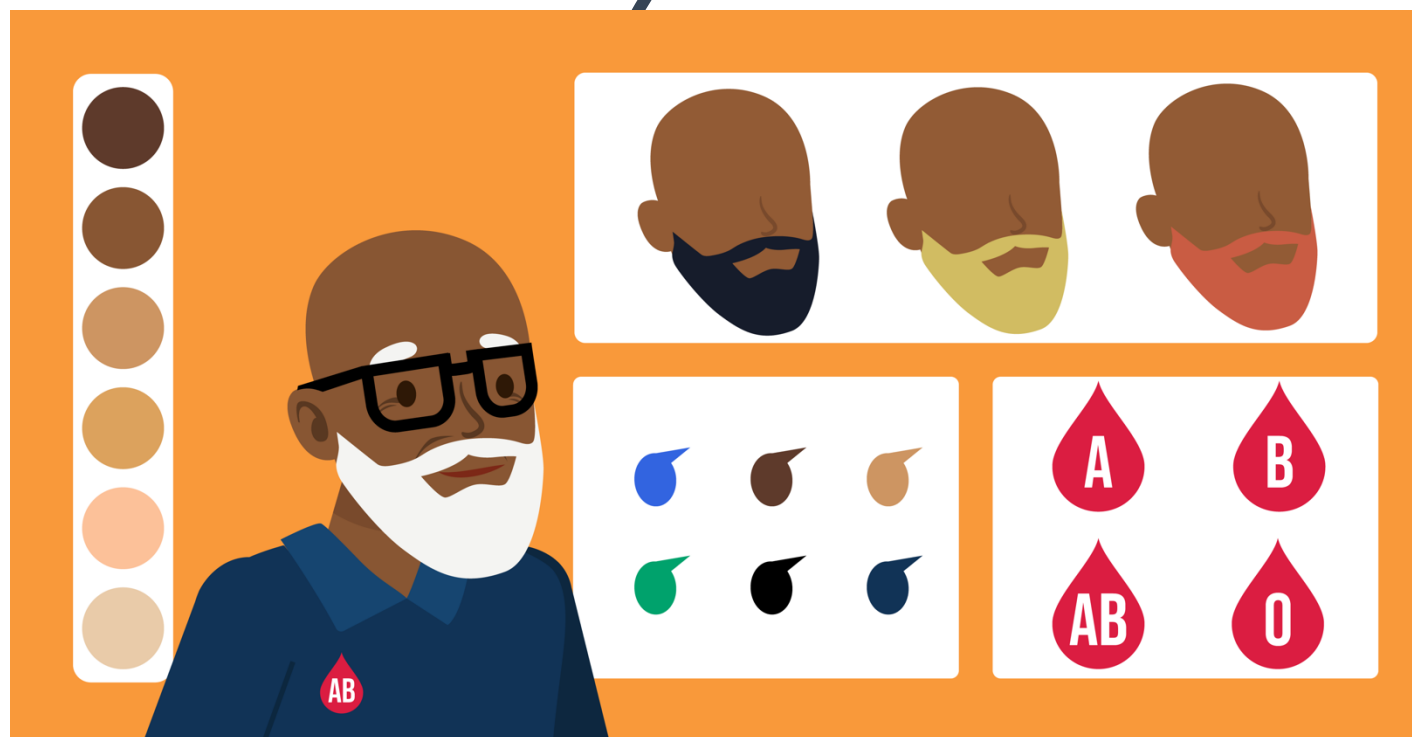
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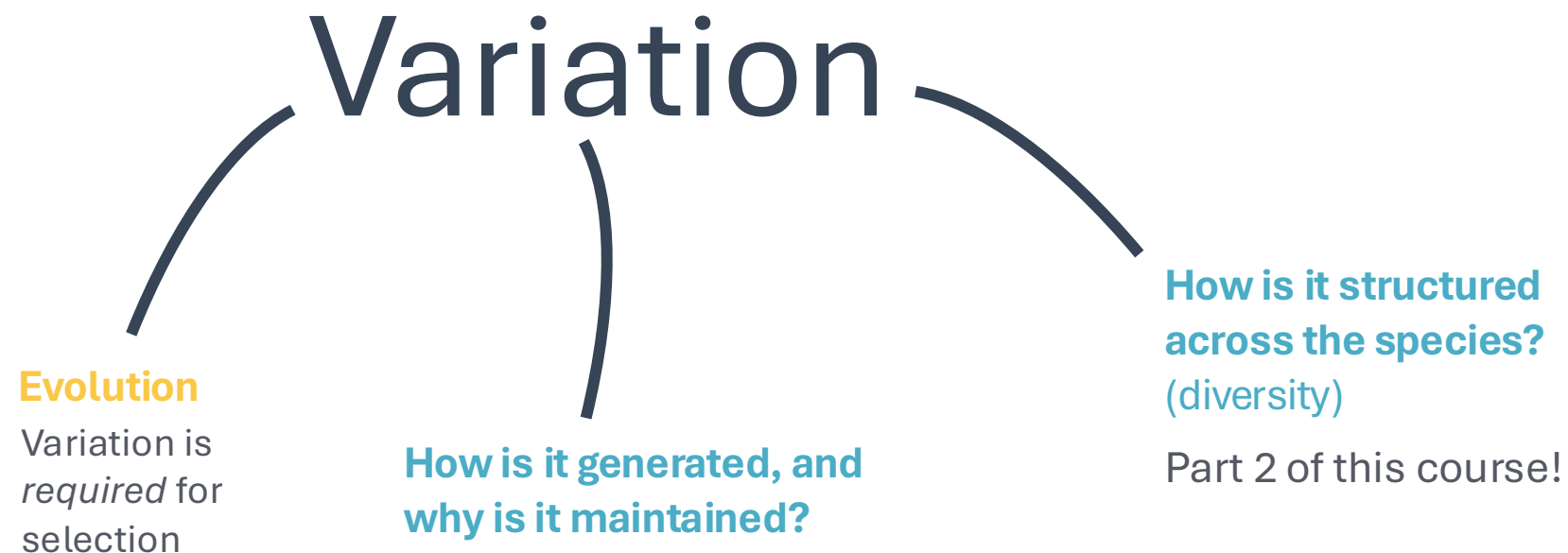
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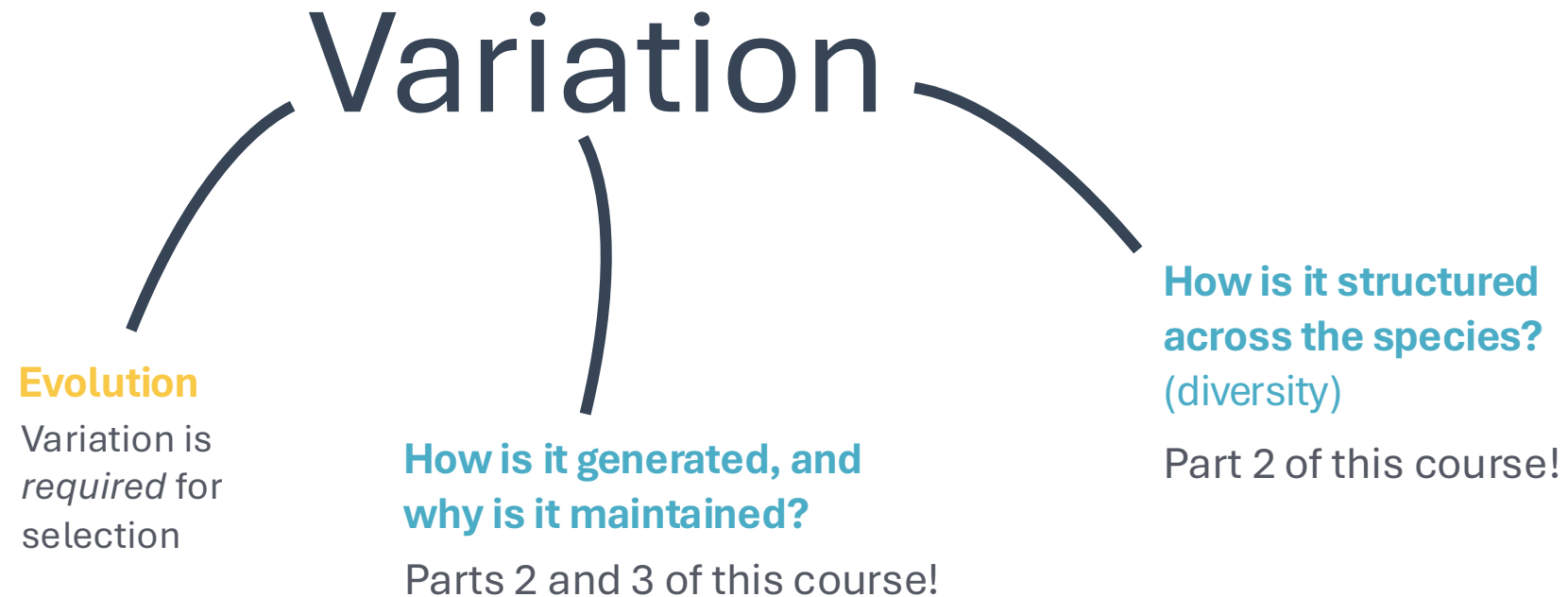
The key to it all...



The key to it all...



The key to it all...



Modern best practices in ethics

- Modern ethical standards in many cases explicitly formulated in response to historical transgressions

Initially no ethical codes explicitly formulated

- E.g., informed consent: Nuremberg Code. *- 1st bioethics code formulated: Nuremberg Code*

- The **voluntary consent** of the human subject is absolutely essential. This means that the person involved should have **legal capacity to give consent**; should be situated as to be able to exercise free power of choice, without the intervention of any element of force, fraud, deceit, duress, over-reaching, or other ulterior form of constraint or coercion, and should have sufficient knowledge and comprehension of the elements of the subject matter involved as to enable him to make an understanding and enlightened decision. This latter element requires that before the acceptance of an affirmative decision by the experimental subject

Voluntary/informed consent: legal capacity to give consent freely and with sufficient knowledge about the nature, duration, and purpose of the study to make an informed decision

- The duty and responsibility for ascertaining the quality of the consent rests upon each individual who initiates, directs or engages in the experiment. It is a personal duty and responsibility which may not be delegated to another with impunity.
- The experiment should be such as to yield fruitful results for the good of society, unprocured by other methods or means of study, and not random and unnecessary in nature.
- The experiment should be so designed and based on the results of animal experimentation and a knowledge of the natural history of the disease or other problem under study that the anticipated results will justify the performance of the experiment.
- The experiment should be so conducted as to avoid all unnecessary physical and mental suffering and injury.
- No experiment should be conducted where there is an a priori reason to believe that death or disabling injury will occur; except, perhaps, in those experiments where the experimental physicians also serve as subjects.
- The degree of risk to be taken should never exceed that determined by the humanitarian importance of the problem to be solved by the experiment.
- Proper preparations should be made and adequate facilities provided to protect the experimental subject against even remote possibilities of injury disability or death.
- The experiment should be conducted only by scientifically qualified persons. The highest degree of skill and care should be required through all stages of the experiment of those who conduct or engage in the experiment.
- During the course of the experiment the human subject should be at liberty to bring the experiment to an end if he has reached the physical or mental state where continuation of the experiment seems to him to be impossible.
- During the course of the experiment the scientist in charge must be prepared to terminate the experiment at any stage, if he has probable cause to believe, in the exercise of the good faith, superior skill and careful judgement required by him that a continuation of the experiment is likely to result in injury, disability, or death to the experimental subject.

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Physical

Psychological

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Consider data storage!



Physical

Psychological

Privacy

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Living individuals

Living groups

The dead

Living descendants

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Best practice: a conservative approach – consent is *not* a given, and if unclear, best not to go ahead. Consider local customs in consent-seeking process. Give full, transparent information in as much detail as possible. Consent is only granted for that agreed upon; samples cannot be used for new research



The easiest, supposedly...
...but consider the reality:

- Language
- Life experience and education level
- Incentives
- Age

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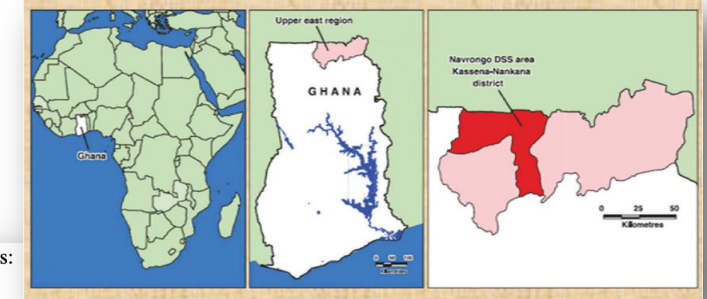
The dead

However, the chiefs expressed differing views about whether researchers should obtain consent from individuals after permission was obtained from a chief. Some said this was not necessary because it is the chief's responsibility to inform the community members about the proposed research.

It is not necessary. It is the responsibility of the chief to inform the people. He could beat a drum to assemble his people and to relate the message to them. (IDI with divisional chief in the West zone)

Other chiefs expressed the view that it would be necessary to seek the consent of individuals as well because they are the actual participants.

It is necessary. I only sit here and give you permission to enter into the community. It is the people who take part in the studies not me. (IDI with paramount chief)



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IRB. 2006 ; 28(3): 1–6.

The Informed Consent Process in a Rural African Setting::

A Case Study of the Kassena-Nankana District of Northern Ghana

Paulina Onvomaha Tindana, MHSc, research officer of the Navrongo Health Research Centre in Navrongo, Ghana, and a Fogarty fellow of the Johns Hopkins University Berman Bioethics Institute in Baltimore, MD, USA, and the Joint Centre for Bioethics at the University of Toronto in Toronto, ON, Canada

Nancy Kass, ScD, and Phoebe R. Berman Professor of Bioethics and Public Health at the Department of Health Policy and Management, Johns Hopkins University Bloomberg School of Public Health and Johns Hopkins University Berman Bioethics Institute in Baltimore, MD, USA

Patricia Akweongo, PhD research scientist at the Navrongo Health Research Centre in Navrongo, Ghana

All the female respondents said they consulted their husbands before participating in a study, yet they gave different accounts about the extent to which their husband's wishes affected their own decision of whether to participate.

I will go and tell my husband that the VAST people have come to ask me to join their study and so I want to let him know about it and if he says I should go then I will go, but if he refuses, I won't go. That is why when he agrees I always come and join them. (IDI with female respondent)

I discussed it with my husband and he agreed for me to participate and that was why I took part in it. (IDI with female respondent)

I make that decision and then my husband will also agree and then he will also ask me to participate. If I don't want to participate, my husband cannot force me to participate. (IDI with female respondent)

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Long-term research brings unique challenges when it comes to group-level consent

- Standards of informed consent have changed
- New members of the group may not have given consent; older members may be deceased when new consent is sought

Getting consent at **group level**

- Who speaks for the group?
- How can consent be withdrawn?

Best practice: a conservative approach – consent is *not* a given, and if unclear, best not to go ahead. Consider local customs in consent-seeking process. Give full, transparent information in as much detail as possible. Consent is only granted for that agreed upon; samples cannot be used for new research

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Questions to consider:

- Do the dead have rights?
- Is there a difference between whole bodies and body parts when it comes to ethics of research?
- Can the dead ever give consent?

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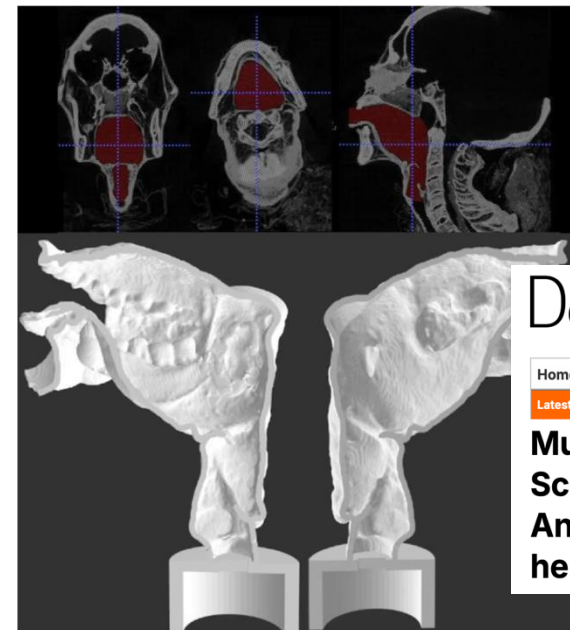


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History of collection

- Often (if not always) without consent
- With intention of 'proving' racism

Connection to the present

- Ancestral remains are sacred, and ancestors are active beings that play an important role in the lives of their descendants

None of these ethical considerations exist in a vacuum; they often come on the heels of decades, if not centuries, of genocide and erasure aimed at indigenous peoples and their ways of life.

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Kennewick Man

- 9000 years old
- Decades-long tension between researchers and Indigenous communities who claimed him as their ancestor
- aDNA: relationship with living Indigenous communities
- Repatriated in 2017



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Prof. Keolu Fox
TED talk on
Canvas



Best practice

USA: relatively far ahead of the rest (in this regard)!

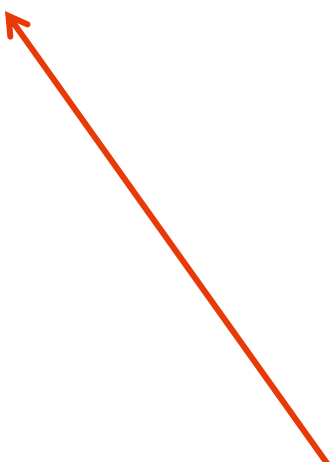
- NAGPRA: repatriation of Indigenous human remains

Everywhere:

- Repatriation – but often not formally required
- Consultation & active involvement of living descendants

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Research already designed.
But **who** gets to *do* the research, and
who gets to *ask* the questions?

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- Involvement of study subjects in research design (where appropriate)
- Culturally appropriate presentation of results to the scientific community *and* study subjects
- Capacity-building: including, promoting, supporting, and acknowledging full authorship of local researchers
 - Methods workshops on data collection and analysis
 - Sponsorship of university-level education (especially abroad)
 - Sponsorship of conference attendance



Not unique to studies with human subjects!

Prof. Kristen Broehl-Droke

Bioarchaeology: Relationship between biological and cultural affinity in past populations – studied at a precolonial site in the San Francisco Bay Area with permission of descendant groups.

Forensic anthropology: Casework in several states, such as search and recovery of remains from victims of the Camp Fire wildfire in Paradise, CA in 2018.

